

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rushelle Sharpe	Team: Team # 4	CCRB Case #: 201012979	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 09/21/2010 6:30 PM	Location of Incident: In front of § 87(2)(b) 46th Precinct Stationhouse, in an ambulance and § 87(2)(b)		Precinct: 46	18 Mo. SOL 3/21/2012	EO SOL 3/21/2012
Date/Time CV Reported Thu, 09/23/2010 10:37 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/23/2010 10:37 AM		
Complainant/Victim	Type	Home Address			
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)			
Witness(es)	Home Address				
§ 87(2)(b)	§ 87(2)(b)				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Jeffrey Griffin	00443	934963	046 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM James Simpson	29530	943420	046 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A.POM Jeffrey Griffin	Discourtesy: PO Jeffrey Griffin spoke obscenely to § 87(2)(b) in front of § 87(2)(b) at the 46th Precinct Stationhouse, in an ambulance and at § 87(2)(b)			§ 87(2)(b)	

Case Summary

§ 87(2)(b) filed a complaint with the CCRB on September 23, 2010 (encl. 3A-3B).

On § 87(2)(b) at approximately 6:00 p.m., officers responded to a 911 call at § 87(2)(b) in the Bronx for an incident involving § 87(2)(b) her son, § 87(2)(b) 2) and their neighbors. The following allegations resulted:

Allegation A – Discourtesy: PO Jeffrey Griffin spoke obscenely and/or rudely to § 87(2)(b) in front of § 87(2)(b) at the 46th Precinct stationhouse, in an ambulance and at § 87(2)(b)

§ 87(2)(b) § 87(2)(g)

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) African-American female, 5'10", 210 lbs, with brown hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on November 9, 2010 (encl. 4A-4H). On § 87(2)(b) at approximately 4:15 pm, at § 87(2)(b) on the § floor of the building, § 87(2)(b) was accosted in the hallway by her neighbors, § 87(2)(b) and § 87(2)(b) § 87(2)(b) s son, § 87(2)(b) was also attacked and stabbed twice by these neighbors. § 87(2)(b) called 911. During the altercation, § 87(2)(b) started having panic attacks and chest pains.

§ 87(2)(b) arrived to the lobby downstairs and saw an ambulance outside of the location; her son was being helped by EMTs. § 87(2)(b) got into the ambulance with her son. In the ambulance, there were a total of 4 people: § 87(2)(b) and 2 EMT personnel. As the ambulance was leaving, an officer, identified as PO Jeffrey Griffin, of the 46th Precinct, knocked in the back door of the vehicle. The EMT opened the ambulance doors for the PO Griffin. PO Griffin said “I’m tired of this fucking family, if it was up to me I’d throw her off the motherfucking roof. I’d lock’em all up!!!” § 87(2)(b) did not make this allegation in her initial statement. PO Griffin took § 87(2)(b) out of the ambulance and cuffed her. § 87(2)(b) was arrested but was not aware what she was arrested for. § 87(2)(b) was handed over to PO2 and PO3, black male officers, and was placed in a marked police vehicle. § 87(2)(b) explained that she was experiencing panic attacks and chest pains from the time of her attack and throughout the entire incident.

§ 87(2)(b) was taken to the 46th precinct, searched by a female officer and then placed in a holding cell by the officers who transported her to the precinct. § 87(2)(b) collapsed while in the. PO Griffin came into the holding area and said to § 87(2)(b) “Stop being a fucking drama queen; ain’t nothing fucking wrong with you”. § 87(2)(b) did not make this allegation in her initial statement. § 87(2)(b) could not recall how long she had been in the cell before PO Griffin entered the area. When PO Griffin made this comment, § 87(2)(b) could not say if there were other officers in the holding area; she knew that there were individuals in the cell next to hers, but she could not see them. PO James Simpson, of the 46th Precinct, whom § 87(2)(b) identified as PO Griffin’s partner, told § 87(2)(b) to calm down and told her that everything would be okay. She informed PO Griffin that she hoped he had his union representative because she planned to

file a complaint with the CCRB.

An ambulance was called and § 87(2)(b) was placed in the ambulance. While in the ambulance, PO Griffin continued to curse and called § 87(2)(b) a “fucking drama queen” while on the phone. § 87(2)(b) stated in her initial complaint that PO Griffin called her a “a fucking black drama queen” and a “stupid nigger” while on the way to the hospital; however, she did not make any allegations of offensive language in her official statement. There was an EMT who rode in the back. § 87(2)(b) was administered Ativan at the hospital. § 87(2)(b) fell asleep due to the medication she was given. PO Griffin woke her up when he snatched the sheet off § 87(2)(b) yanked her out of the bed and placed her back in handcuffs; PO Griffin said “Get the fuck up, let’s go!!! You’re going to jail”. § 87(2)(b) did not make this allegation in her initial statement. § 87(2)(b) was brought back to the 46th Precinct stationhouse and charged with § 87(2)(b)

Witness: § 87(2)(b)

- § 87(2)(b) is an § 87(2)(b), African American male; he is 6’4”, 310 lbs with black hair and brown eyes.

CCRB Testimony

§ 87(2)(b) spoke with the CCRB on January 19, 2011 (encl. 5A-5B). On § 87(2)(b) both § 87(2)(b) and his mother, § 87(2)(b) were in an ambulance at § 87(2)(b) § 87(2)(b) had been attacked by his neighbor and was being taken to the hospital. As the ambulance began to drive off, it was stopped by an officer who told § 87(2)(b) that she wasn’t going anywhere and to get out of the ambulance. § 87(2)(b) was upset that she was not being allowed to go to the hospital with her son. An officer took § 87(2)(b) out of the ambulance and § 87(2)(b) saw her get placed in handcuffs. § 87(2)(b) heard the officer say something to his mother but did not recall what had been said.

§ 87(2)(b) saw his mother at § 87(2)(b) later in the day while he was being discharged. § 87(2)(b) remained at the hospital approximately 5-10 minutes after seeing his mother. During this time, § 87(2)(b) recalled that § 87(2)(b) attempted to get out of her bed; one of the officers who had escorted § 87(2)(b) grabbed her and told her to lie down. § 87(2)(b) told the officer not to touch her. § 87(2)(b) did not recall which officer did this.

Witness: EMT § 87(2)(b)

- § 87(2)(b) works as an emergency services technician with the FDNY; his EMT shield number is § 87(2)(b)

CCRB Testimony

EMT § 87(2)(b) provided a phone statement to the CCRB on April 12, 2011 (encl. 6). On § 87(2)(b) at approximately 6:00 p.m., EMT § 87(2)(b) and his partner, EMT § 87(2)(b) received a 911 request for an ambulance at § 87(2)(b) in the Bronx. § 87(2)(b) was placed on the stretcher and brought out to the ambulance. The examination in the lobby took no more than 10-12 minutes.

As the ambulance prepared to leave, an officer entered the ambulance to ride with § 87(2)(b) to the hospital. This officer’s badge number is noted in the ambulance call report. Other than the officer, EMTs § 87(2)(b) and § 87(2)(b) and § 87(2)(b) no other civilians had entered the back of the ambulance or had been in the back of the ambulance when EMT § 87(2)(b) went to the front of the ambulance to drive.

Witness: EMT § 87(2)(b)

- EMT § 87(2)(b) is emergency services technician with the FDNY; his EMT shield number is

§ 87(2)(b)

CCRB Testimony

EMT § 87(2)(b) provided a phone statement on April 12, 2011 (encl. 7). He confirmed that on § 87(2)(b) both he and EMT § 87(2)(b) responded to § 87(2)(b) in the Bronx, but he did not recall a female entering the ambulance.

Witness: EMT § 87(2)(b)

- EMT § 87(2)(b) is an emergency services technician with the FDNY; his shield number is § 87(2)(b)

CCRB Testimony

On February 23, 2011, EMT § 87(2)(b) provided a phone statement to the CCRB (encl. 8). On § 87(2)(b) at approximately 5:00pm, EMT § 87(2)(b) was called to the 46th Precinct for an individual who was having an anxiety attack. EMT § 87(2)(b) and EMT § 87(2)(b) entered the stationhouse and proceeded to the holding cell where the female was located. She was sitting in the cell and cursing; EMT § 87(2)(b) could not recall specifically what curse words the female used. While the EMT's attempted to take her blood pressure in the cell, the female was coherent but non-compliant. The EMT's placed the female onto the stretcher and brought her outside to the ambulance. An officer escorted the female to the hospital

While in the ambulance, the female's demeanor was unchanged: she was still argumentative, non-compliant and cursing. EMT § 87(2)(b) was the only EMT in the back. The female was cursing at the officer, stating that she did not like cops. The female was handcuffed to the stretcher in the back of the ambulance. EMT § 87(2)(b) did not recall the officer speaking with the female. He did not recall the officer telling the female to "shut the fuck up" or to "stop being a fucking drama queen". The female was brought to § 87(2)(b)

NYPD Statement(s):

Subject Officer: PO JEFFREY GRIFFIN

- PO Jeffrey Griffin is a § 87(2)(b)-old, Caucasian male, standing at 6'0", 270 lbs, with brown hair and blue eyes.
- On 09/21/10, PO Simpson worked a tour of 1500 x 2335, in uniform with PO James Simpson; he was assigned to sector M/N with the 46th Precinct in a marked RMP, # 4854.

Memobook

- PO Griffin had the following relevant memo book entries: "18:15: 34 @ § 87(2)(b); 18:39: 92C x 3; PO Simpson taking collar; § 87(2)(b) Hospitalized prisoner @ § 87(2)(b); 01:35-EOT".

CCRB Testimony

PO Jeffrey Griffin was interviewed at the CCRB on March 28, 2011 (encl. 9A-9G). On § 87(2)(b) PO Jeffrey Griffin and his partner, PO James Simpson, answered a radio call of an assault in progress with a male stabbed at § 87(2)(b). PO's Griffin and Simpson were the first unit to respond to the location. PO Simpson and PO Griffin entered the lobby of the apartment building at § 87(2)(b). In the lobby, they observed § 87(2)(b) was standing approximately 10 feet in front of the security desk. PO Griffin stepped off to the side while PO Simpson spoke with § 87(2)(b). PO Griffin had no conversation or interaction with § 87(2)(b). PO Griffin could hear § 87(2)(b) tell PO Simpson that the person who stabbed him was on the § 87(2)(b) floor. § 87(2)(b) was with a group of people; PO Griffin did not speak with any of these individuals. Both officers went upstairs to the § 87(2)(b) floor to

investigate. The officers met with a woman named § 87(2)(b) on the § floor, who provided a narrative of the incident to PO Simpson. § 87(2)(b) § 87(2)(b) stated she and her neighbor, § 87(2)(b) began fighting after § 87(2)(b) hit § 87(2)(b) in the shin with a stroller. § 87(2)(b) § 87(2)(b) called for her son, § 87(2)(b) for help; § 87(2)(b) joined in the assault and began hitting § 87(2)(b) § 87(2)(b) daughter. § 87(2)(b) § 87(2)(b) other daughter, who was in her apartment, came outside with a knife, and stabbed § 87(2)(b) in the back to protect her mother and sister. § 87(2)(b) § 87(2)(b) also told PO Simpson that she had an order of protection against § 87(2)(b) and § 87(2)(b). PO Griffin had minimal interaction with § 87(2)(b) while PO Simpson spoke with her. PO Simpson placed the daughter who stabbed § 87(2)(b) in handcuffs. PO Griffin and PO Simpson spent approximately 5-10 minutes upstairs.

Upon arriving downstairs, PO Griffin saw § 87(2)(b) being placed in the ambulance; § 87(2)(b) was following her son. She stepped into the ambulance with her son and EMS personnel. Additional officers had responded to the location. Another officer asked § 87(2)(b) to step outside of the ambulance as she was to be arrested. As she exited the ambulance on her own, § 87(2)(b) pointed at PO Griffin and stated that she did not want “that officer” due to a prior interaction between herself and PO Griffin. When § 87(2)(b) made the comment, PO Griffin moved away from the ambulance to his vehicle. Another officer placed her under arrest. § 87(2)(b) § 87(2)(b) wasn’t yelling or screaming. PO Griffin did not say anything to § 87(2)(b) while she was in the ambulance; he did not use any profanity towards § 87(2)(b) while at the location; neither his partner nor any other officers used profanity towards § 87(2)(b) while at § 87(2)(b). After stepping out of the ambulance, § 87(2)(b) was told she was under arrest and she was placed in handcuffs. When § 87(2)(b) was told that she would be handcuffed, she became agitated. § 87(2)(b) § 87(2)(b) was placed into an RMP. The ambulance left the location. After § 87(2)(b) was placed in a RMP, PO Griffin and PO Simpson placed their arrest § 87(2)(b) § 87(2)(b) daughter) in their RMP and went back to the stationhouse.

When they arrived at the stationhouse, § 87(2)(b) was standing in front of the desk. PO Griffin did not speak to her; he did not recall if she was saying anything or speaking to any officers. PO Griffin went into the complaint room. PO Griffin did not see § 87(2)(b) again while at the stationhouse. § 87(2)(b) was placed in the holding cell behind the desk. While § 87(2)(b) was in the holding cell, PO Griffin was in the complaint room helping PO Simpson process the arrests. Besides PO Simpson, PO Griffin was not aware of any other officer interacting with § 87(2)(b) § 87(2)(b) while she was in the holding cell. PO Griffin did not enter the holding area and use any profanity towards § 87(2)(b). He did not hear any officer or his partner use any profanity towards § 87(2)(b) while at the stationhouse. PO Simpson called an ambulance for § 87(2)(b).

After EMS placed § 87(2)(b) into the ambulance, PO Griffin got into the ambulance. He was the only police officer in the ambulance. § 87(2)(b) was stating that she couldn’t breathe and grabbing her chest. PO Griffin did not make any direct comments to § 87(2)(b) while in the ambulance; however, he was speaking with his sister-in-law on his cell phone and told his sister-in-law that he had to go to the hospital with “this drama queen”. He did not use any profanity towards § 87(2)(b) § 87(2)(b) or use any profanity when making his remark.

While being wheeled into the hospital, § 87(2)(b) was cursing at PO Griffin. PO Griffin was at the hospital for 5 hours with § 87(2)(b). She continued to curse at PO Griffin. PO Griffin recalled that the only conversation he had with § 87(2)(b) was about the double handcuffs she had on her wrists. § 87(2)(b) was double-cuffed when she was being transported. When she was transferred to a bed in the hospital, PO Griffin handcuffed one hand to the railing of the bed while the second cuff was loose on § 87(2)(b) s other hand. PO Griffin attempted to take off the second cuff but § 87(2)(b) pulled her hand away. PO Griffin explained that he wanted to take the cuff off to make her comfortable. § 87(2)(b) began cursing at him. § 87(2)(b) took the loose cuff and placed it around her wrist; § 87(2)(b) then put her hand under her shirt and told him if he touches

her, she'll scream. PO Griffin walked away from § 87(2)(b) to stand by the nurses' station, 10 feet away from her bed. PO Griffin remained at the nurses' station for the remainder of his time at the hospital. § 87(2)(b)'s demeanor changed only when she was given drugs by the doctor. The drugs put her to sleep. When § 87(2)(b) woke up, she was released from the hospital. PO Griffin called for a unit to come and pick them up. When PO Griffin attempted to handcuff § 87(2)(b) she began yelling for him to not touch her. An officer, who responded to the hospital to take both PO Griffin and § 87(2)(b) back to the stationhouse, handcuffed § 87(2)(b). She was taken to the car and brought back to the precinct. While at the hospital, PO Griffin did not use any profanity while speaking to § 87(2)(b). He heard no other officer use profanity with § 87(2)(b) while at the hospital.

Witness Officer: PO JAMES SIMPSON

- PO James Simpson is a § 87(2)(b)-old, Caucasian male, standing at 5'8", 220 lbs, with brown hair and blue eyes.
- On September 21, 2010, PO Simpson worked a tour of 1500 x 2335, in uniform with PO Jeffrey Griffin; he was assigned to sector M/N with the 46th Precinct in a marked RMP, # 4854.

OLBS Worksheet

The OLBS report for § 87(2)(b) indicates that she was processed under the name § 87(2)(b) and charged with § 87(2)(b) (encl. 10A-10L).

Memobook

PO Simpson had the following relevant memo book entries: "18:05-34- § 87(2)(b) 18:34: 3 under in regards; 18:50: 84, 46 Pct.; 19:05: Begin arrest processing: Defts § 87(2)(b), § 87(2)(b), § 87(2)(b) C/V to § 87(2)(b) Deft. § 87(2)(b), § 87(2)(b) Deft. § 87(2)(b) § 87(2)(b) 46I, sit on § 87(2)(b) @ § 87(2)(b); 20:02: Request bus for § 87(2)(b) chest pains; § 87(2)(b) Removed to § 87(2)(b) PO Griffin, 443, escort; § 87(2)(b) Prisoners returned from Hospital; 01:00: Debrief prisoners; 02:00: Prisoners debriefed-arrest processing; 03:00-05:00: Arrest processing; 06:30: Arrest processing complete; 06:35: EOT".

CCRB Testimony

PO James Simpson was interviewed at the CCRB on March 28, 2011 (encl. 10A-10L). PO Simpson corroborated PO Griffin's statement regarding their reason for being at § 87(2)(b). PO Simpson also corroborated that PO Griffin did speak with § 87(2)(b) outside of § 87(2)(b) or while in the 46th Precinct stationhouse. PO Simpson was not present to witness the interactions between PO Griffin and § 87(2)(b) while in the ambulance on its way to § 87(2)(b) or while at § 87(2)(b).

Medical Records

On § 87(2)(b) § 87(2)(b) was taken to § 87(2)(b) in police custody. The ambulance call report indicates that she complained of having an anxiety attack. Once at the hospital, § 87(2)(b) complained of suffering from an anxiety attack. She was evaluated by the psychology department and diagnosed with adjustment disorder/mood disorder. She was treated with Ativan before being released back into police custody (encl. 11A-11T).

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Status of Civil Proceedings

- [§ 87(2)(b)] has not filed a Notice of Claim with the City of New York as of March 8, 2011 with regard to the incident (encl. 16A-16E).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian(s) CCRB History

- [§ 87(2)(b)] previously filed CCRB case numbers: [§ 87(2)(b)]
[REDACTED]
[REDACTED]

Subject Officer(s) CCRB History

- PO Jeffrey Griffin has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 1).

Conclusion

Identification of Subject Officer(s)

PO Griffin admitted to seeing [§ 87(2)(b)] at [§ 87(2)(b)] and at the 46th Precinct stationhouse but denied speaking with her at these locations. He admitted to interacting and speaking with [§ 87(2)(b)] in the ambulance, on the way to [§ 87(2)(b)] and at the hospital.

Investigative Findings and Recommendations

Allegation A – Discourtesy: PO Jeffrey Griffin spoke obscenely and/or rudely to [§ 87(2)(b)] in front of [§ 87(2)(b)] at the 46th Precinct stationhouse, in an ambulance and at [§ 87(2)(b)]

According to [§ 87(2)(b)] PO Jeffrey Griffin said “I’m tired of this fucking family, if it was up to me I’d throw her off the motherfucking roof. I’d lock’em all up!!!”, “Stop being a fucking drama queen; ain’t nothing fucking wrong with you”, called her a “fucking drama queen” and said “Get the fuck up, let’s go!!! You’re going to jail” at multiple locations. [§ 87(2)(b)] made statements which were inconsistent regarding allegations-she made allegations of offensive language against PO Griffin which she failed to reiterate in her official statement. Neither [§ 87(2)(b)] a sympathetic witness, nor EMTs [§ 87(2)(b)] or [§ 87(2)(b)] corroborated the allegations of discourtesy at [§ 87(2)(b)] PO Griffin denied using profanity towards [§ 87(2)(b)] at [§ 87(2)(b)] and the 46th Precinct stationhouse. PO Simpson corroborated this statement; he did not hear PO Griffin use profanity towards [§ 87(2)(b)] at either of these locations. PO Griffin acknowledged that he did call [§ 87(2)(b)] a “drama queen” while on the phone in the ambulance but denied using profanity when making this comment; EMT [§ 87(2)(b)] corroborated PO Griffin’s statement-the officer did not use profanity towards [§ 87(2)(b)] [§ 87(2)(g)]
[REDACTED]
[REDACTED]

Team: 4

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date